UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, and DOES 1-5,

Defendants.

Case No. 8:22-CV-01727-FWS-JDE

[PROPOSED] ORDER GRANTING DEFENDANTS AMAZON.COM SERVICES, LLC AND AMAZON LOGISTICS, INC.'S MOTION TO DISMISS PLAINTIFF'S FIRST AND FIFTH CLAIMS IN THE FIRST AMENDED COMPLAINT

Date: February 16, 2023
Time: 10:00 a.m.
Judge: Hon. Fred W. Slaughter
Ctrm: 10D

On December 15, 2022, Defendants Amazon.com Services, LLC and Amazon Logistics, Inc.'s (together, "Amazon") filed a Motion to Dismiss the First and Fifth Claims for Relief in the First Amended Complaint (the "Motion"). The Court, having considered the parties' moving, opposing, and reply papers and oral argument, and for good cause appearing, hereby GRANTS Amazon's Motion, for the reasons set forth below:

Plaintiff's first claim for alleged violation of California Penal Code § 290.46 ("Megan's Law") is subject to dismissal because the First Amended Complaint and judicially noticeable materials make clear that Amazon did not engage in any unlawful conduct.[1] Megan's Law prohibits an employer from utilizing information obtained from the Megan's Law website concerning registered sex offenders to make employment decisions. Cal. Pen. Code § 290.46(j)(2)(E). But it does not prohibit an employer from obtaining and utilizing the same or similar information from alternative sources, such as court searches and/or background check reports.

Here, Amazon received a background check report on Plaintiff from Defendant Accurate Background, LLC ("Accurate"). First Amended Complaint ("FAC"), ¶¶ 24, 59. In preparing the report, Accurate ran searches of Plaintiff's criminal history in various courts, including Orange County Superior Court. Request for Judicial Notice ("RJN"), Ex. 1 (Background Check Report). The search of criminal records in Orange County identified Plaintiff's felony convictions for rape duress menace and rape by use of drugs. *Id.* The background check report did not contain any information obtained from the Megan's Law website. *Id.* In rescinding Plaintiff's conditional job offer, Amazon relied upon the criminal history information from Orange County Superior Court that appeared in the background check report, not information disclosed on the Megan's Law

[1] The Court hereby grants Amazon's request for judicial notice of the documents attached to the Request for Judicial Notice for the reasons stated in Amazon's request.

website. FAC, ¶¶ 24, 59. Because Amazon's consideration of Plaintiff's felony conviction history was permissible, Plaintiff's First Claim for Relief lacks merit and therefore is hereby dismissed with prejudice.

Because Plaintiff's First Claim for Relief against Amazon lacks merit, so too does his Fourth Claim for Relief under California's Unfair Competition Law ("UCL"). Plaintiff premises his UCL claim on Amazon's alleged violation of Megan's Law. Since that claim fails as a matter of law, then so too does his derivative UCL claim. This claim fails for the additional, independent reason that Plaintiff is not entitled to injunctive relief, the sole remedy sought in connection with his UCL claim. As a threshold matter, Plaintiff lacks standing to sue for an injunction. Because Plaintiff does not currently work for Amazon, an injunction requiring Amazon to comply with certain provisions of the law will not benefit Plaintiff. Moreover, Plaintiff is not entitled to equitable relief where he has an adequate remedy at law. Because Plaintiff seeks compensatory damages in the FAC, he cannot allege that he lacks an adequate remedy at law. Accordingly, Plaintiff's UCL claim is hereby dismissed with prejudice.

Plaintiffs First and Fifth Claims for Relief in the First Amended Complaint are hereby dismissed with prejudice.

IT IS SO ORDERED.

DATED: _____

THE HONORABLE FRED W. SLAUGHTER
UNITED STATES DISTRICT JUDGE